

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #12	CCRB Case #: 201904498	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/17/2019 1:35 PM	Location of Incident: 49th Precinct stationhouse; en route to Bronx Central Booking; Bronx Central Booking	Precinct: 49	18 Mo. SOL 11/17/2020	EO SOL 7/4/2021	
Date/Time CV Reported Fri, 05/17/2019 7:50 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/23/2019 11:10 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Tashida Wilson	1078	945105	049 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Daisy Rivera	28921	951146	049 PCT
2. POM Gregory Hernandez	26400	938661	049 PCT
3. DT3 Luis Carrasquillo	01449	923866	049 DET
4. SGT James Nonnon	01994	930842	049 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Tashida Wilson	Discourtesy: At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	
B.DT3 Tashida Wilson	Force: At the 49th Precinct stationhouse, Detective Tashida Wilson used physical force against § 87(2)(b) § 87(2)(b)	
C.DT3 Tashida Wilson	Discourtesy: At the 49th Precinct Stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	
D.DT3 Tashida Wilson	Abuse: At the 49th Precinct stationhouse, Detective Tashida Wilson did not obtain medical treatment for § 87(2)(b) § 87(2)(b)	
E.DT3 Tashida Wilson	Discourtesy: At the 49th Precinct Stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	
F.DT3 Tashida Wilson	Discourtesy: At the 49th Precinct Stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	
G.DT3 Tashida Wilson	Force: At the 49th Precinct Stationhouse, Detective Tashida Wilson used physical force against § 87(2)(b) § 87(2)(b)	
H.DT3 Tashida Wilson	Abuse: At the 49th Precinct stationhouse, Detective Tashida Wilson threatened § 87(2)(b) § 87(2)(b) with the use of force.	
I.DT3 Tashida Wilson	Discourtesy: At the 49th Precinct Stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J.DT3 Tashida Wilson	Abuse: En route to Bronx Central Booking, Detective Tashida Wilson took photographs of § 87(2)(b) § 87(2)(b)	
K.DT3 Tashida Wilson	Abuse: At Bronx Central Booking, Detective Tashida Wilson refused to provide her name to § 87(2)(b) § 87(2)(b)	
L.DT3 Tashida Wilson	Abuse: At Bronx Central Booking, Detective Tashida Wilson refused to provide her shield number to § 87(2)(b) § 87(2)(b)	
M.DT3 Tashida Wilson	Discourtesy: At Bronx Central Booking, Detective Tashida Wilson spoke discourteously to § 87(2)(b) § 87(2)(b)	

Case Summary

On May 17, 2019, § 87(2)(b) filed this complaint over the phone with IAB. The case was received by the CCRB on May 23, 2019 under log #19-19624.

On May 17, 2019 at approximately 1:35PM, § 87(2)(b) went to the 49th Precinct stationhouse in the Bronx, where she was subsequently arrested on an open I-Card. Detective Tashida Wilson, assigned to the 49th Precinct Detective Squad, allegedly told § 87(2)(b) “Put your fucking hands behind your back” (**Allegation A- Discourtesy:** § 87(2)(g)). While walking § 87(2)(b) down the stairs, Det. Wilson allegedly knelt § 87(2)(b) in the back of her knees and twisted her arms (**Allegation B- Force:** § 87(2)(g)). Det. Wilson allegedly told § 87(2)(b) “Move the fuck faster” (**Allegation C- Discourtesy:** § 87(2)(g)). Det. Wilson allegedly responded to § 87(2)(b)'s request for medical attention by stating, “Stop fucking playing games” (**Allegation D- Abuse of Authority:** § 87(2)(g), **Allegation E- Discourtesy:** § 87(2)(g)). § 87(2)(b) asked for a bottle of water, to which Det. Wilson responded, “This is not a fucking hotel” (**Allegation F- Discourtesy:** § 87(2)(g)). Det. Wilson walked § 87(2)(b) back down the stairs and continued to knee her in the back of her knee (**Allegation G- Force:** § 87(2)(g)). Det. Wilson told § 87(2)(b) “I should punch you in the face” and “Shut the fuck up.” (**Allegation H- Abuse of Authority:** § 87(2)(g), **Allegation I- Discourtesy:** § 87(2)(g)). Det. Wilson took a photograph of § 87(2)(b) while en route to Bronx Central Booking (**Allegation J- Abuse of Authority:** § 87(2)(g)).

At Central Booking, § 87(2)(b) asked Det. Wilson for her name and badge number, to which Det. Wilson allegedly responded, “None of your fucking business.” (**Allegation K- Abuse of Authority:** § 87(2)(g), **Allegation L-Abuse of Authority:** § 87(2)(g), **Allegation M- Discourtesy:** § 87(2)(g)).

§ 87(2)(b) was arrested for stalking in the fourth degree.

The investigation obtained footage from the 49th Precinct stationhouse, but the footage does not capture any of the allegations (Board Review 01, summary located in Board Review 02). The investigation also obtained body-worn camera footage from Police Officer Daisy Rivera and Police Officer Gregory Hernandez, both assigned to the 49th Precinct (Board Review 03, 04, summary located in Board Review 05, 06). Det. Wilson was not equipped with a body-worn camera at the time of this incident.

Findings and Recommendations

Allegation A-Discourtesy: At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated in her verified CCRB interview that on May 17, 2019 at approximately 1:35PM, she went to the 49th Precinct stationhouse along with her attorney, § 87(2)(b) and her father, § 87(2)(b) in order to file a report against her ex-boyfriend (Board Review 07). § 87(2)(b) spoke with Detective Luis Carrasquillo in an interview room located on the second floor of the stationhouse. At the conclusion of the meeting, Sergeant James Nonnon, the supervisor of the 49th Precinct Detective Squad, approached § 87(2)(b) and informed her that she would be arrested on an open I-Card for stalking. Det. Wilson came in the room and took her handcuffs out. § 87(2)(b) asked Det. Wilson if she could front cuff her due to a pre-existing shoulder injury. Det. Wilson told § 87(2)(b) “Put your fucking hands behind your back,” and handcuffed her.

In a telephone statement, § 87(2)(b) stated that § 87(2)(b) became upset and “very excited” upon being informed that she would be arrested (Board Review 08). § 87(2)(b) used profanity toward the officers and called them “jokes.” § 87(2)(b) stated that Det. Wilson and an unidentified other female officer came into the room and became “overly aggressive” with § 87(2)(b) by “pushing her around a little bit.” § 87(2)(b) did not know which parts of § 87(2)(b)

§ 87(2)(b)'s body Det. Wilson and the unidentified female were pushing and they stated, "I didn't really see. I could see that there was some kind of movement." § 87(2)(b) noted that this movement did not seem out of the ordinary and that it appeared that the officers wanted to make an arrest. The female officers, Sgt. Nonnon and Det. Carraquillo took § 87(2)(b) out of the room. Once § 87(2)(b) was out of the room, Det. Wilson made a comment about § 87(2)(b)'s "bad attitude" and stated that someone needed to "fix it." § 87(2)(b) was not handcuffed inside the interview room and Det. Wilson did not tell § 87(2)(b) to put her "fucking hands" behind her back. § 87(2)(b) did not hear Det. Wilson use any profanity toward § 87(2)(b).

The stationhouse footage obtained by the investigation captured the cells of the squad area but there was no footage inside the interview room.

In her CCRB interview, Det. Wilson stated that she was first informed of § 87(2)(b)'s presence in the stationhouse when Sgt. Nonnon asked her to handle her arrest as she was the only female detective assigned to the 49th Precinct Detective Squad on that day (Board Review 09). § 87(2)(b) was "highly annoyed" when she learned that she was going to be arrested and called Det. Wilson a "bitch." Det. Wilson did not handcuff § 87(2)(b) inside the interview room and did not tell § 87(2)(b) "Put your fucking hands behind your back."

In his CCRB interview, Sgt. Nonnon corroborated the accounts provided by Det. Wilson and § 87(2)(b) by stating that when § 87(2)(b) found out she was going to be arrested, she acted like "a two year old" (Board Review 10). Both Sgt. Nonnon and § 87(2)(b) attempted to explain the situation to her, but § 87(2)(b) continually argued with them. Sgt. Nonnon was unsure if § 87(2)(b) was handcuffed. Sgt. Nonnon posited that he might have just brought her from the interview room to the cell upstairs. Sgt. Nonnon was informed that it was alleged that § 87(2)(b) was handcuffed by Det. Wilson in the meeting room; Sgt. Nonnon did not recall if that happened. Sgt. Nonnon did not recall if Det. Wilson ever told § 87(2)(b) "Put your hands behind your fucking back."

Both § 87(2)(b) and Det. Wilson stated that § 87(2)(b) was not handcuffed inside the interview room and that Det. Wilson did not make the statement, "Put your fucking hands behind your back" to her. § 87(2)(g)

Allegation B- Force: At the 49th Precinct stationhouse, Detective Tashida Wilson used physical force against § 87(2)(b)

Allegation C- Discourtesy- At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after being handcuffed, Det. Wilson walked her down the stairs of the stationhouse in order to get her fingerprinted. Nobody else was on the stairs while this was happening. While walking down the stairs, Det. Wilson twisted § 87(2)(b)'s arms and kned § 87(2)(b) in the back of her knees in an attempt to push her down the stairs. § 87(2)(b) was being compliant in walking down the stairs and was not resisting. Det. Wilson told § 87(2)(b) "Move the fuck faster. Stop playing games." § 87(2)(b) never lost her balance and never fell down the stairs, but she felt that Det. Wilson wanted her to fall down the stairs. Later at Bronx Central Booking, § 87(2)(b) requested medical attention for pain to her shoulder but did not obtain medical treatment. Following her arrest, § 87(2)(b) went to the emergency room for pain to her arm, which was sustained during this incident. § 87(2)(b) declined to allow the CCRB to access her medical records.

Det. Wilson stated that when she walked § 87(2)(b) down the stairs, § 87(2)(b) tried to pull her arms away from Det. Wilson. § 87(2)(b) called Det. Wilson a “bitch.” Det. Wilson told § 87(2)(b) to walk down the stairs. Det. Wilson prevented § 87(2)(b) from pulling away by holding on to her. Det. Wilson held onto § 87(2)(b) s forearms with her hands. Det. Wilson did not knee § 87(2)(b) in the back of her knee. Det. Wilson did not make contact with § 87(2)(b) s knee at any point during this incident. Det. Wilson did not tell § 87(2)(b) “Move the fuck faster. Stop playing games.” Det. Wilson denied using physical force against § 87(2)(b) at any point.

Sgt. Nonnon stated that when § 87(2)(b) came back to the second floor after being fingerprinted, she told him that while walking on the stairs, Det. Wilson squeezed her arm. § 87(2)(b) did not allege any injuries and Sgt. Nonnon did not observe any injuries on her. § 87(2)(b) never requested medical attention at any point.

A request for a Medical Treatment of Prisoner request was returned with negative results.

The ISAR report prepared by Captain Denis O’Hanlon noted that § 87(2)(b) requested medical attention at Bronx Central Booking but refused medical attention once an ambulance arrived (Board Review 11). According to Captain O’Hanlon, the EMTs who responded stated that § 87(2)(b) had told them her complaint was for nausea and not for any pain to her shoulder.

§ 87(2)(g)

Allegation D- Abuse of Authority: At the 49th Precinct stationhouse, Detective Tashida Wilson did not obtain medical treatment for § 87(2)(b)

Allegation E- Discourtesy- At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after she was fingerprinted, Det. Wilson escorted her back up the stairs wherein she placed her in the squad cells along with another prisoner, § 87(2)(b) § 87(2)(b) told Det. Wilson that she needed medical attention because when she handcuffed her, she reinjured her shoulder. Det. Wilson responded by saying, “Stop fucking playing games. Stop playing fucking games and let’s get this done. Do you want to be here all fucking night?” § 87(2)(b) did not respond to this.

The investigation was unable to establish contact with § 87(2)(b) despite attempts to call her on the phone number which she provided to § 87(2)(b)

The investigation obtained one hour of stationhouse footage capturing the cells at the 49th Precinct stationhouse; the footage does not have audio and does not capture any interactions between Det. Wilson and § 87(2)(b) with the sole exception of Det. Wilson and PO Rivera escorting § 87(2)(b) out of the cells to take her to Central Booking (Board Review 01, summary located in Board Review 02).

Det. Wilson denied that § 87(2)(b) ever asked for medical attention at the stationhouse and stated that she never told § 87(2)(b) “Stop fucking playing games. Stop playing fucking games and let’s get this done. Do you want to be here all fucking night?” Det. Wilson denied using profanity to § 87(2)(b) at any point.

§ 87(2)(g)

Allegation F- Discourtesy- At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while in the cell, she asked Sgt. Nonnon for a bottle of water. Sgt. Nonnon then gave § 87(2)(b) a cup of water. § 87(2)(b) again asked for a bottle of water. Sgt. Nonnon told § 87(2)(b) that she could only have the cup. Det. Wilson, who was standing by Sgt. Nonnon at this time, told § 87(2)(b) “This is not a fucking hotel.” § 87(2)(b) asked Sgt. Nonnon if she could call her boyfriend to get her something to drink. Sgt. Nonnon responded that he could give her a bag of chips. § 87(2)(b) said she was allergic and could not have chips.

The video footage does not capture Sgt. Nonnon giving § 87(2)(b) water at any point.

Det. Wilson stated in her CCRB interview that § 87(2)(b) asked if she could bring her reusable bottle with her to Central Booking. Sgt. Nonnon told § 87(2)(b) that she could not take it with her but offered to get her some water. § 87(2)(b) was “very upset” at being told that she could not take her bottle with her. Sgt. Nonnon offered to have § 87(2)(b)’s family member bring her food. § 87(2)(b) did not want the food. § 87(2)(b) noted that she could only consume food that was gluten free and halal. Det. Wilson never told § 87(2)(b) “This is not a fucking hotel.”

Sgt. Nonnon stated that while in the cells § 87(2)(b) asked for a glass of water. Sgt. Nonnon gave § 87(2)(b) a cup of water. Sgt. Nonnon stated that § 87(2)(b) “may” have been upset about this and asked for a bottle of water as opposed to a cup but he did not recall. Sgt. Nonnon did not recall Det. Wilson ever telling § 87(2)(b) “This is not a fucking hotel.” Sgt. Nonnon did not recall hearing Det. Wilson using any profanity toward § 87(2)(b)

§ 87(2)(g)

Allegation G- Force: At the 49th Precinct stationhouse, Detective Tashida Wilson used physical force against § 87(2)(b)

Allegation H- Discourtesy- At the 49th Precinct stationhouse, Detective Tashida Wilson spoke discourteously to § 87(2)(b)

Allegation I- Abuse of Authority: At the 49th Precinct stationhouse, Detective Tashida Wilson threatened Mehrark § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that after being in the cell, she asked Det. Wilson to go to the bathroom. Det. Wilson took § 87(2)(b) out of the cell and escorted her down the stairs. While walking down the stairs, Det. Wilson again knelt § 87(2)(b) in the back of her knees. § 87(2)(b) experienced pain to her legs and hips. § 87(2)(b) asked Det. Wilson to provide her with more information about her arrest and Det. Wilson said, “Shut the fuck up.” When walking § 87(2)(b) back up the cells, Det. Wilson twisted § 87(2)(b)’s arms. § 87(2)(b) told Det. Wilson that she was hurting her, to which Det. Wilson stated, “Shut the fuck up.” § 87(2)(b) stated that at some point when she and Det. Wilson were on the stairs, though she could not remember when, Det. Wilson told § 87(2)(b) “I should punch you in the face.”

Det. Wilson did not recall walking down § 87(2)(b) down the stairs more than once and stated that when she escorted § 87(2)(b) down the stairs, she took her to get fingerprinted and then

directly after that, took her to Central Booking. As stated in Allegations B and C, Det. Wilson denied kneeling § 87(2)(b) in the back of her knees or twisting her arm when walking her down the stairs. Det. Wilson did not tell § 87(2)(b) to “shut the fuck up” and never told her, “I should punch you in the face.”

§ 87(2)(g)

Allegation J- Abuse of Authority: En route to Bronx Central Booking, Detective Tashida Wilson took a photograph of § 87(2)(b)

It is undisputed that Det. Wilson took a photograph of § 87(2)(b) while transporting her in a police vehicle to Bronx Central Booking. It is further undisputed that PO Hernandez and PO Rivera accompanied Det. Wilson and § 87(2)(b) in the car and that Det. Wilson was sitting in the front passenger’s seat.

§ 87(2)(b) stated that she was in the backseat of a marked police vehicle. While in the car, Det. Wilson took multiple photos of § 87(2)(b)’s face using a black cell phone. The camera snapped a few times. Nothing happened right before Det. Wilson took these photos. § 87(2)(b) believed that Det. Wilson was going to post the photos on social media but she did not have any basis for this belief.

Det. Wilson stated that she took a photograph of § 87(2)(b) in order to show her supervisor, Sgt. Nonnon, § 87(2)(b)’s demeanor. At the time of the photo, § 87(2)(b) was slouched over. Det. Wilson wanted to show Sgt. Nonnon the photo for the because § 87(2)(b) has a history of making false allegations against officers. No one, including Sgt. Nonnon, requested that Det. Wilson take the photograph. Det. Wilson asked PO Hernandez and PO Rivera to take their BWCs off and train them on § 87(2)(b) while she was in the back of the vehicle. Det. Wilson did not recall how many photographs she took of § 87(2)(b) but stated that it was most likely one photograph. Det. Wilson used a cell phone to take this photograph but she did not recall if she used her personal or departmental phone. Det. Wilson texted this photograph to Sgt. Nonnon. Det. Wilson was “pretty sure” that Sgt. Nonnon responded to her text, but she could not recall what he said. At 14:43 in the interview recording, Detective’s Endowment Association Representative John Herk interjected and asked Det. Wilson if the photo was taken for her safety, in case § 87(2)(b) made any allegations. Det. Wilson responded, “Yeah, well, we knew she was going to do that regardless.”

Sgt. Nonnon stated in his CCRB interview that he asked two uniformed officers from the 49th Precinct to escort Det. Wilson and § 87(2)(b) to Central Booking because he wanted them to record the transport with their body-camera because § 87(2)(b) had a history of making false allegations against members of the 49th Precinct Detective Squad.

As Sgt. Nonnon was interviewed after Det. Wilson, the undersigned did not ask Sgt. Nonnon about Det. Wilson’s text.

Both PO Rivera and PO Hernandez had their body-worn cameras trained on § 87(2)(b) so the footage does not capture the moment in which Det. Wilson took the photograph of § 87(2)(b) and does not capture a conversation about a photograph (Board Reviews 03, 04, summary located in Board Review 05, 06).

On January 13, 2019, the investigation received one photo, taken on Det. Wilson’s departmental cell phone (Board Review 12). The photo is taken through the bars of the partition separating the backseat and front seat of the car. § 87(2)(b) has her eyes closed.

According to NYPD Operations Order 20, officers are permitted, but not required, to use Department phones to photograph or record the following: all incidents where members of service are taking or attempting to take an individual into custody, and during any public interaction that escalates and becomes adversarial (Board Review 13).

§ 87(2)(g)

Allegation K- Abuse of Authority: At Bronx Central Booking, Detective Tashida Wilson refused to provide her name to § 87(2)(b)

Allegation L- Abuse of Authority: At Bronx Central Booking, Detective Tashida Wilson refused to provide her shield number to § 87(2)(b)

Allegation M- Abuse of Authority: At Bronx Central Booking, Detective Tashida Wilson refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that once arrived at Central Booking, PO Rivera and PO Hernandez waited in the car while Det. Wilson escorted her into a side entrance of the building. While at the door, § 87(2)(b) asked Det. Wilson, “What’s your name? What’s your badge number?” Det. Wilson said, “None of your fucking business” and did not provide § 87(2)(b) with her information. § 87(2)(b) did not provide Det. Wilson’s name or shield number in her statement to IAB in her written notarized statement to the CCRB, or in her telephone interview with the CCRB (Board Review 16, 17, 07).

Det. Wilson stated that § 87(2)(b) asked for her name and shield number at the station at the stationhouse and Central Booking. § 87(2)(b) asked Det. Wilson for this information when they first spoke in the meeting room and again when she was being fingerprinted. § 87(2)(b) asked Det. Wilson for this information when they arrived at Central Booking. Each time, Det. Wilson provided this information verbally for her. Det. Wilson never responded to a request for her name and shield number by saying, “None of your fucking business.” Det. Wilson did not use any profanity toward § 87(2)(b) at any point.

At 17:10:35 in PO Rivera’s BWC footage, § 87(2)(b) is seen walking out of the marked RMP and going to where Det. Wilson is standing by a door (Board Review 03, summarized in Board Review 05). The footage does not capture any conversation between Det. Wilson and § 87(2)(b). PO Rivera does not follow § 87(2)(b) and instead enters the marked vehicle and turns off her body-worn camera.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- 201801531 involved an allegation of a threat of arrest, which was exonerated.
- Detective Tashida Wilson has been a member of service for twelve years and has been a subject in fifteen cases and 28 allegations, none of which have been substantiated. § 87(2)(g) [REDACTED]

Mediation, Criminal, and Civil Histories

- This case was unsuitable for mediation.
- As of December 20, 2019, the New York City Office of the Comptroller has no record of a notice of claim filed in regards to this incident (Board Review 14).
- According to the Office of Court Administration (OCA), § 87(2)(b) [REDACTED] has no history of criminal convictions in New York City (Board Review 15).

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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